

MERIDIAN LIFE ASSURANCE LIMITED

LifeSecure Critical Illness Rider

Accelerated Critical Illness Rider

Policy Provisions

Product Form No.: MLA-LS-2006

These Provisions form part of the Policy Contract. Please read them together with the Policy Schedule, the Application and any Endorsements.

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PREAMBLE

In consideration of the payment of the first premium and each subsequent premium as they fall due, Meridian Life Assurance Limited (the “Company”) will provide the benefits described in these Provisions, subject to the terms, conditions, limitations and exclusions set out herein and in the Policy Schedule. This Rider is issued as a supplementary benefit to the Basic Policy identified in the Policy Schedule and accelerates a portion of the death benefit of that Basic Policy. Where there is any conflict between these Provisions and the Policy Schedule, the Policy Schedule shall prevail.

PART A – DEFINITIONS

In these Provisions, unless the context otherwise requires, the following words and expressions shall have the meanings assigned to them below. Words importing the singular include the plural and vice versa.

“**Basic Policy**” means the underlying whole life policy (Plan Code WL05 (LifeSecure Whole Life base policy)) to which this Rider is attached, as identified in the Policy Schedule.

“**Company**” means Meridian Life Assurance Limited, its successors and assigns.

“**Accelerated Sum Assured**” means the amount of the death benefit of the Basic Policy that is accelerated on the admission of a claim under this Rider, being the amount shown as the Rider Sum Assured in the Policy Schedule.

“**Life Assured**” means the person named as the Life Assured in the Policy Schedule and on whose life this Rider is effected.

“**Policy Owner**” means the person named as the Policy Owner in the Policy Schedule who is entitled to exercise all rights, privileges and options under the Policy.

“**Issue Date**” means the date on which this Rider is issued, as shown in the Policy Schedule, being the date from which cover under these Provisions commences.

“**Policy Anniversary**” means each anniversary of the Issue Date.

“**Critical Illness**” means any one of the medical conditions, illnesses, diseases or surgical procedures listed in Schedule 1 (Major Critical Illnesses), each as defined in these Provisions, first occurring after the Issue Date and satisfying the applicable definition, the Waiting Period and the Survival Period.

“**Major Critical Illness**” means any one of the 36 conditions listed in Schedule 1, in each case satisfying the definition set out in Schedule 3 where applicable.

“**Diagnosis**” means the definitive diagnosis of a Critical Illness made by a Registered Medical Practitioner, Specialist or, where required by the relevant definition, a Consultant, supported by clinical, radiological, histological, histopathological and laboratory evidence acceptable to the Company and its Chief Medical Officer.

“**Waiting Period**” means the period described in Clause C1 during which a Diagnosis (or the signs or symptoms leading to it) does not give rise to a claim.

“**Survival Period**” means the period described in Clause C2 for which the Life Assured must survive following Diagnosis.

“**Registered Medical Practitioner**” means a person qualified and licensed to practise western medicine and duly registered with the relevant medical authority, other than the Policy Owner, the Life Assured, an insurance intermediary, a business partner or an immediate family member of the Life Assured.

PART B – THE CRITICAL ILLNESS BENEFIT

B1 Accelerated Critical Illness Benefit Subject to these Provisions, upon the Diagnosis of the Life Assured as suffering from a Major Critical Illness which first occurs after the Issue Date, which satisfies the Waiting Period under Clause C1 and in respect of which the Life Assured survives the Survival Period under Clause C2, the Company will pay to the Policy Owner a lump sum equal to one hundred per cent (100%) of the Accelerated Sum Assured.

B2 Acceleration of the Basic Policy The benefit under this Rider is an **acceleration** benefit. The amount paid under Clause B1 shall be advanced out of, and shall reduce by an equal amount, the death benefit and the Sum Assured of the

Basic Policy. Where the Accelerated Sum Assured is equal to the Sum Assured of the Basic Policy, payment of the benefit under this Rider shall extinguish the death benefit of the Basic Policy and both the Basic Policy and this Rider shall thereupon terminate.

B3 Single Claim Only This Rider provides for **one claim only**. Cover under this Rider is not on a multiple-claim basis. Upon the admission of a claim under Clause B1, this Rider terminates and no further benefit is or shall become payable under it, notwithstanding the subsequent Diagnosis of any further Critical Illness.

B4 No Early-Stage Benefit This Rider does **not** provide any benefit for early-stage, minor, or less severe conditions, carcinoma-in-situ, angioplasty, or any condition not listed in Schedule 1. Only the 36 Major Critical Illnesses listed in Schedule 1 are covered.

PART C – WAITING PERIOD AND SURVIVAL PERIOD

C1 Waiting Period No benefit is payable in respect of any Critical Illness where the Diagnosis is made, or where the signs, symptoms, investigations or medical consultation first leading to the Diagnosis occur, within **ninety (90) days** of the Issue Date or of the date of any reinstatement, whichever is later. This Waiting Period applies to Major Cancer, Heart Attack of Specified Severity, and coronary artery conditions. For all other Critical Illnesses no Waiting Period applies. Any Diagnosis first arising during the Waiting Period is excluded even if the condition persists beyond it.

C2 Survival Period As this Rider accelerates the death benefit of the Basic Policy, **no survival period applies** (the Survival Period is zero days). The benefit is payable upon admission of the claim irrespective of whether the Life Assured survives, in which event it shall be paid in the manner provided in Clause G3.

PART D – PREMIUMS

D1 Yearly Renewable Term Premiums Premiums for this Rider are charged on a **Yearly Renewable Term (YRT)** basis. The premium rate is **not level**: it is re-determined at each Policy Anniversary by reference to the attained age of the Life Assured in accordance with the Company's YRT rate table applicable to this Rider, and will ordinarily **increase each year** as the Life Assured grows older. The Company may revise the YRT rate table for all Lives Assured of the same class upon giving thirty (30) days' written notice.

D2 Grace Period A grace period of thirty (30) days from each premium due date is allowed for the payment of each premium after the first. Cover continues in force during the grace period. If any premium remains unpaid at the end of the grace period, the Rider shall lapse with effect from the premium due date.

PART E – LEVEL SUM ASSURED

E1 No Automatic Increase The Accelerated Sum Assured under this Rider is **level**. There is no automatic or indexed increase of the Accelerated Sum Assured. Any increase in cover requires a fresh application and is subject to underwriting and the Company's approval.

PART F – GENERAL EXCLUSIONS

No benefit shall be payable under these Provisions in respect of any Critical Illness which is caused, directly or indirectly, wholly or partly, by or resulting from any of the following:

- (a) any Pre-Existing Condition, being any condition, illness or injury for which the Life Assured received or was recommended to receive medical advice, treatment, consultation or medication, or the signs or symptoms of which existed, prior to the Issue Date or the date of last reinstatement, and which was not disclosed to and accepted by the Company;
- (b) any Critical Illness diagnosed within the Waiting Period as described in Clause C1;
- (c) self-inflicted injury or attempted suicide, while sane or insane;
- (d) the presence of any Human Immunodeficiency Virus (HIV) and/or any HIV-related illness including AIDS, except as expressly covered under Schedule 1;
- (e) the abuse of alcohol, drugs or any substance not taken in accordance with the directions of a Registered Medical Practitioner;

- (f) any congenital anomaly or any condition arising out of a congenital defect which manifested or was diagnosed before the Life Assured attained age seventeen (17);
- (g) war, invasion, act of foreign enemy, hostilities (whether war be declared or not), civil war, rebellion, revolution, riot, or the Life Assured taking part in any unlawful act;
- (h) travel in or descent from any aircraft other than as a fare-paying passenger in a licensed commercial aircraft; and
- (i) nuclear fission, nuclear fusion or radioactive contamination.

PART G – CLAIMS

G1 Notice of Claim Written notice of any claim must be given to the Company within ninety (90) days of the date of Diagnosis. Failure to give notice within the time prescribed shall not invalidate a claim if it is shown that it was not reasonably possible to give such notice and that notice was given as soon as was reasonably possible.

G2 Proof of Claim The claimant shall furnish, at his own expense, all such certificates, reports, medical records, histological and laboratory evidence, and information as the Company may reasonably require to establish the claim and the applicable definition in Schedule 3. The Life Assured shall submit to medical examination by a Registered Medical Practitioner appointed by the Company as often as the Company may reasonably require.

G3 Payment of the Benefit On admission of a claim the Company will pay the benefit to the Policy Owner or, where the benefit becomes payable on or after the death of the Life Assured, to the nominee or estate under the Basic Policy.

PART H – GENERAL PROVISIONS

H1 Free-Look Period The Policy Owner may cancel this Rider by written notice received by the Company within twenty-one (21) days after the Policy Owner receives the Policy document, in which event the Company will refund the premium paid less any medical or other expenses incurred by the Company, provided no claim has arisen.

H2 Incontestability Except for fraud or non-payment of premium, the Company shall not contest the validity of this Rider after it has been in force during the lifetime of the Life Assured for two (2) years from the Issue Date or the date of last reinstatement.

H3 Age and Gender If the age or gender of the Life Assured has been misstated, the benefit payable shall be such as the premium paid would have purchased at the correct age and gender, and the Company may adjust premiums accordingly. If, at the correct age, the Life Assured would not have been eligible for cover, no benefit shall be payable and the Company's liability shall be limited to a refund of premiums paid without interest.

H4 Reinstatement A lapsed Rider may be reinstated within twelve (12) months of lapse upon written application, production of evidence of insurability satisfactory to the Company, and payment of all overdue premiums with interest. A fresh Waiting Period shall apply from the date of reinstatement.

H5 Governing Law These Provisions shall be governed by and construed in accordance with the laws of the jurisdiction stated in the Policy Schedule, and the parties submit to the exclusive jurisdiction of its courts.

SCHEDULE 1 – MAJOR CRITICAL ILLNESSES

This Rider covers the following 36 Major Critical Illnesses. Each condition is payable only where the applicable definition (see Schedule 3 for selected conditions) is satisfied in full.

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| 1. Major Cancer | 19. End Stage Liver Failure |
| 2. Heart Attack of Specified Severity | 20. End Stage Lung Disease |
| 3. Stroke with Permanent Neurological Deficit | 21. Fulminant Viral Hepatitis |
| 4. Coronary Artery By-pass Surgery | 22. Benign Brain Tumour |
| 5. Kidney Failure | 23. Bacterial Meningitis |
| 6. Major Organ / Bone Marrow Transplantation | 24. Viral Encephalitis |
| 7. Multiple Sclerosis | 25. Primary Pulmonary Hypertension |
| 8. Muscular Dystrophy | 26. Systemic Lupus Erythematosus with Lupus Nephritis |
| 9. Motor Neurone Disease | 27. Major Burns |
| 10. Parkinson's Disease | 28. Heart Valve Surgery |
| 11. Alzheimer's Disease / Severe Dementia | 29. Surgery to Aorta |
| 12. Coma | 30. Cardiomyopathy |
| 13. Deafness (Irreversible Loss of Hearing) | 31. Occupationally Acquired HIV / HIV Due to Blood Transfusion |
| 14. Loss of Speech | 32. Terminal Illness |
| 15. Blindness (Irreversible Loss of Sight) | 33. Progressive Systemic Sclerosis (Scleroderma) |
| 16. Major Head Trauma | 34. Apallic Syndrome (Persistent Vegetative State) |
| 17. Paralysis (Irreversible Loss of Use of Limbs) | 35. Loss of Independent Existence |
| 18. Aplastic Anaemia | 36. Severe Rheumatoid Arthritis |

The precise medical definition of each Major Critical Illness, including the severity thresholds, diagnostic criteria and any exclusions specific to that condition, forms part of these Provisions. Selected definitions are reproduced in Schedule 3. A condition which does not meet its definition in full is not covered, notwithstanding that it may be described by the same or a similar name.

SCHEDULE 3 – DEFINITIONS OF SELECTED CRITICAL ILLNESSES

The following definitions are reproduced by way of illustration. Similar detailed definitions apply to every condition listed in Schedule 1.

Major Cancer. A malignant tumour characterised by the uncontrolled growth and spread of malignant cells with invasion and destruction of normal tissue, and for which definite histological confirmation of malignancy is obtained. The term Major Cancer **excludes:** (a) all tumours which are histologically classified as carcinoma-in-situ, cervical dysplasia CIN-1, CIN-2 and CIN-3; (b) any non-melanoma skin carcinoma unless there is evidence of metastases; (c) malignant melanoma of less than 1.0mm Breslow thickness and not ulcerated; (d) all tumours of the prostate histologically described as TNM Classification T1a or T1b or Gleason score 6 or below; (e) papillary micro-carcinoma of the thyroid less than 1cm in diameter; and (f) all tumours in the presence of HIV infection.

Heart Attack of Specified Severity. Death of heart muscle due to obstruction of blood flow, evidenced by the simultaneous occurrence of: (a) a history of typical chest pain; (b) new characteristic electrocardiographic changes; and (c) elevation of cardiac biomarkers (Troponin T or I, or CK-MB) to at least three times the upper limit of the laboratory reference range. Angina, and a rise in cardiac biomarkers following any intra-arterial cardiac procedure, are excluded.

Stroke with Permanent Neurological Deficit. A cerebrovascular incident including infarction of brain tissue, intracranial or subarachnoid haemorrhage, or embolisation from an extracranial source, producing permanent neurological deficit that is assessed at least six (6) weeks after the event. Transient ischaemic attacks, vascular disease affecting the eye or optic nerve, and lacunar infarcts without neurological deficit are excluded.

[The remaining condition definitions are omitted from this case-study extract.]